

		Each counsel will be able to present their evidence to support their position. The Court orders the Defendant to be present in court. If the Defendant is unable to be present in court, an ex parte motion requesting remote appearance and the basis is to be filed with this Court at least 5 court days in advance of the hearing date. The Court set this matter for an evidentiary hearing on the Motion to Vacate for October 21, 2026 at 1:30 PM in Department C61. The Court Clerk is to provide notice of the Court's ruling.
6	30-2026-01592499 Mahgerefteh vs. Hawes	The Court has read and considered the Motion to Quash Service of Summons (ROA 13) and Plaintiff's Opposition (ROA 19). As this matter requires an evidentiary hearing as to the merits, as there is no rebuttable presumption, and as the person who served notice is not a registered process server, the Court will set this matter for an evidentiary hearing on 9/23/2026 at 1:30 PM in Dept. C61. Parties are ordered back for that date.
7	30-2026-01590215 TMP II Apts LLC vs. Lacy	The Court has read and considered the Defendant's Motion to Quash Service of Summons (ROA 7) and the Plaintiff's Opposition (ROA 18). The Court takes Judicial Notice of the Proof of Service of Summons-Personal (ROA 13). The Defendant filed the Motion to Quash Service of Summons as a boilerplate motion, without changing the information in the motion or providing relevant facts for this case. Filing a frivolous motion with the Court may warrant monetary sanctions. The Court finds the Motion frivolous because Defendant did not provide any facts related to this case in the motion and failed to review it for accuracy before submission. California Evidence Code Section 647 creates a rebuttable presumption that a proof of service signed by a registered process server is true. It shifts the burden of proving lack of service to the defendant, rather than requiring the plaintiff to prove proper service. Here, ROA 13 shows that a registered process server effectuated personal service on the Defendant on 8/21/2026 at 7:32 AM. Defendant provides no evidence to rebut the presumption under Evidence Code section 647. The Court DENIES the Motion to Quash Service of Summons. Defendant is ordered to file a responsive pleading within 3 calendar days. The Court orders a shortened time period because Defendant filed a frivolous motion. Plaintiff is ordered to provide notice of the Court's ruling.
8	30-2026-01587609	The Court has read and considered the Defendant's Motion to Quash Service (ROA 16) and the Plaintiff's Opposition (ROA 22).

	The Irvine Company LLC vs. Broadway	The Court takes Judicial Notice of the Proof of Service of Summons (ROA 15) and the Order to Serve Summons by Posting (ROA 10). California Evidence Code Section 647 establishes a rebuttable presumption that a proof of service signed by a registered process server is true. It shifts the burden of proving lack of service to the defendant, rather than requiring the plaintiff to prove proper service. The Defendants failed to provide evidence to rebut the presumption established under Evidence Code Section 647. Plaintiff provided the Court with Exhibit 1, the accountability report showing the pictures taken of the attempted service and the posting that occurred on 8/13/2026. The Defendant provides no evidence to rebut the presumption under Evidence Code section 647, except for his own self-serving statement that he was not properly served and that there was only one attempt at service. The Court DENIES the Motion to Quash Service. The Defendant is ordered to file a responsive pleading within 5 calendar days. The Plaintiff is ordered to provide notice of the Court's ruling.
9	30-2026-01584273 Umbria Apartment Homes LLC vs. Maharmeh	The Court has read and considered the Defendant's Motion to Set Aside Judgment After Trial (ROA 25). The Court takes Judicial Notice of the 8/25/2026 Minute Order (ROA 20) and Notice to Entry of Judgment (ROA 22). The Defendant submitted documentation concerning medical appointments on August 14, 2026, August 15, 2026, and August 24, 2026. The Concentra Work Activity Status Report dated August 24, 2026, states that the Defendant may "Return to modified work/activity today" and indicates that the Defendant was not prescribed any medication that would affect the ability to drive or operate machinery. The submitted documentation does not establish that the Defendant had a medical appointment on August 25, 2026, the date of trial. The Defendant did not file a motion to continue the matter, nor did the Defendant provide notice to the Court or Plaintiff's counsel, either before or on the date of trial, that a continuance was necessary. Further, the August 24, 2026, Work Activity Status Report authorized the Defendant to return to modified work or activity that same day. Based on the record before the Court, the Defendant has not established a sufficient basis for the failure to appear or for the failure to request a continuance before the date of trial. The Court therefore finds that the Defendant's failure to notify the Court of the need for a continuance constitutes inexcusable neglect. The Court further finds that the Defendant failed to meet the burden required for relief under California Code of Civil Procedure section 473(b).